

20STCV07353 20STCV07353

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 20STCV07353 Hearing Date: August 21, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 21, 2026

Case Name: Whitestone Builders, Inc. v. Taylor, et al.

Case No.: 20STCV07353

Matter: Motion to Compel Further Responses

Moving Party: The Taylors

Responding Party: Whitestone Builders, Inc.

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a dispute relating to renovations to a duplex. On February 20, 2020, Whitestone Builders, Inc. ("Whitestone") filed a Complaint against Valerie Taylor and Derek Taylor for (1) breach of contract, (2) account stated, (3) common count, (4) unjust enrichment, and (5) foreclosure on mechanic's lien.

On July 6, 2022, Valerie Taylor and Derek Taylor filed a Second Amended Cross-Complaint ("SACC") against Cross-Defendants Whitestone, Pier Pjerin Prenga, and Suretec Indemnity Company for (1) disgorgement; (2) rescission and restitution—violation of Bus. & Prof. Code § 7159; (3) rescission and restitution—contract void for illegality; (4) declaratory relief; (5) breach of written contract; (6) negligence; (7) fraud; and (8) contractor's license bond.

On August 18, 2023, Whitestone filed a First Amended Complaint ("FAC").

On November 7, 2023, the Court granted the motion for summary adjudication of Whitestone and Prenga as to the Taylors' disgorgement claim.

After trial, the Court ruled that "general damages are awarded to the Taylors in the amount of \$179,812.39, minus a credit or set off of \$1,840, for a total damage award of \$177,972.39. The Taylors are deemed the prevailing party and are therefore entitled to an award of costs pursuant to a cost memorandum. Any request for pre-judgment or post judgment interest must be sought by way of a noticed motion. The court will not award any attorneys fees to the Taylors as the prevailing party."

On December 17, 2025, Judgment Creditor Taylor propounded post-judgment Special Interrogatories pursuant to Code of Civil Procedure section 708.020. Special Interrogatory no. 12 requests the name and address of each current creditor, and Special Interrogatory no. 13 requests the amount currently owed to each creditor.

Between February 3, 2026, and August 7, 2026, Whitestone served five sets of responses (an initial set and four supplemental sets). On August 7, 2026, after Mrs. Taylor filed the instant motion to compel further responses, Whitestone served its Fourth Supplemental Verified Responses, withdrawing all boilerplate objections.

As to SI no. 12, in its Fourth Supplemental Response, Whitestone provided a complete street address for Alfred Pepa (5170 Columbus Avenue, Sherman Oaks, CA 91403). As such, the motion as to Mr. Pepa's address is moot. For Niko Kraia, Whitestone provides a phone number but asserts it has been unable to obtain an address despite calling Mr. Kraia and speaking with his father. Whitestone's argument that the information is "equally available" to Mrs. Taylor because she has the phone number is unpersuasive. Whitestone owes the underlying debt and maintains a pre-existing business/creditor relationship with Mr. Kraia. Whitestone must make a complete and diligent effort to obtain and state the address under oath.

As to SI no. 13, Whitestone's Fourth Supplemental Response provides an aggregate estimate of about \$1.5 million in total liabilities but fails to state the individual amounts owed to each of the 21 identified creditors. Whitestone claims it cannot provide a breakdown because its independent bookkeeper, Minji Pack, took the desktop QuickBooks file out of the country in April 2026. Whitestone's defense fails for several reasons. Interrogatory No. 13 was served in December 2025—months before Ms. Pack allegedly became unresponsive or left the country in April 2026. Whitestone offers no adequate justification for failing to obtain a creditor-by-creditor breakdown while the bookkeeper was actively generating financial reports for Whitestone in January 2026. Whitestone admits in its Fourth Supplemental Response that it has begun independently assembling its accounting records from source documents. A corporate debtor cannot refuse to disclose known or ascertainable debt obligations to individual creditors—including corporate officers, affiliated entities, and retained legal counsel—simply because its primary QuickBooks file is unavailable. Whitestone must provide a full, itemized further response based on all information and records currently in its possession, custody, or control.

In sum, the Motion is granted in part as set forth herein. Further responses are to be provided within 20 days. Whitestone is sanctioned \$1,000, which is to be paid within 30 days. The objections are overruled.

Moving party to give notice.